

Whangarei District Council Meeting Minutes

Date: Thursday, 15 December, 2022
Time: 9:00 a.m.
Location: Council Chamber
Forum North, Rust Avenue
Whangarei

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes (Teams)
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Paul Yovich

Not in Attendance Cr Phoenix Ruka

Scribe C Brindle (Senior Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Supplementary Report – Item 6.14 Approach to 2023-2024 Annual Plan

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

Item 6.11 – Request for Road Legalisation Cullen Road.

3. Apology / Kore Tae Mai

Cr Phoenix Ruka (absent)

Moved By Cr Gavin Benney
Seconded By Cr Marie Olsen

That the apology be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

Kim Robinson – Disability Advisory Group and its relationship with council
 Raera Te Ariki – Speed bump Tauroa Street, keep community safe

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 24 November 2022

Moved By Cr Deborah Harding
Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 24 November 2022, having been circulated, including the confidential section, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Decision making over the 2022-23 Christmas recess period

Moved By Cr Ken Couper
Seconded By Cr Phil Halse

That Council:

1. Delegates the power to make urgent decisions on behalf of Council or its Committees between the last scheduled meetings in December 2022 and the first meeting of Council or its Committees in 2023 (the 2022-23 Christmas recess period) to:
 - any two of either the Mayor or Deputy Mayor, and the Chairperson of either the Finance, Infrastructure, Strategy Planning and Development, Community Development, or Te Kārearea Strategic Partnership Standing Committees.
2. In the event the Mayor and Deputy Mayor are both absent from Council at the same time, delegates the power to make urgent decisions on behalf of Council or its Committees over the 2022-23 Christmas recess period to:
 - Any two Chairpersons of either the Finance, Infrastructure, Strategy Planning and Development, Community

Development, or Te Karearea Strategic Partnership Standing Committees.

3. Notes that if it is considered necessary, an extraordinary meeting of Council will be called during the 2022-23 Christmas recess period.
4. Notes that if the urgent decision-making process is exercised, the instances will be reported to the first Council or relevant Committee meeting in 2023.
5. Designates Councillor Nicholas Connop the authority under section 25(5) of the Civil Defence Emergency Management Act 2002 to declare a state of local emergency in the event the Mayor is unavailable over the 2022-23 Christmas recess period.

Carried

6.2 Appointments to Outside Organisations for 2022-2025 term

Moved By His Worship the Mayor

Seconded By Cr Nicholas Connop

That Council:

1. Approves the appointment of elected members as Council representatives to outside organisations as follows:
 - a. Bream Head Conservation Trust – Cr Patrick Holmes
 - b. Hatea Art Precinct Trust – Cr Ken Couper
 - c. Mangakahia Sports and Community Complex Inc (formerly Mangakahia Sports Ground Society Inc) – Cr Simon Reid
 - d. Ngunguru Retirement Village Trust – Cr Gavin Benney, Cr Scott McKenzie
 - e. Northland Athletics and Gymnastics Stadium Trust – Cr Phil Halse
 - f. Northland Craft Trust (Quarry Arts Centre) – Cr Nicholas Connop
 - g. Northland Road Safety Trust – Cr Simon Reid
 - h. Saorsa Retirement Village Trust – Cr Phil Halse
 - i. Stonehaven Village Trust – Cr Phil Halse, Cr Ken Couper
 - j. The Mission to Seafarers Marsden Point – Cr Ken Couper
 - k. Tutukaka Marina Management Trust – Cr Scott McKenzie
 - l. Whangarei Harbour Marina Management Trust – Cr Phil Halse, Cr Deborah Harding
 - m. Whangarei Museum and Heritage Trust (Kiwi North) – Cr Marie Olsen, Cr Simon Reid
 - n. Whangarei Quarry Gardens Trust – Cr Marie Olsen
 - o. Disability Advisory Group – Cr Marie Olsen, Cr Carol Peters
 - p. Hikurangi Flood Management Scheme Working Group – Cr Gavin Benney, Cr Simon Reid

- q. Positive Ageing Advisory Group – Cr Marie Olsen
 - r. Walking and Cycling Reference Group – Cr Gavin Benney
 - s. Youth Advisory Group – Cr Phoenix Ruka, Cr Nicholas Connop
 - t. Chamber of Commerce and Industry of Northland Inc (NorthChamber) – Cr Carol Peters
 - u. City Safe – Cr Gavin Benney
 - v. Creative Communities Assessment Committee – Cr Carol Peters
 - w. Kaipara Moana Working Group – Cr Phil Halse (primary), Cr Deborah Harding (alternate)
 - x. Waste Minimisation Management Plan Project Delivery Group – Cr Nicholas Connop and Cr Marie Olsen
 - y. Airport Relocation Study Project Control Group – Cr's Patrick Holmes, Simon Reid and Phoenix Ruka.
2. Nominates Cr Carol Peters to be appointed as Trustee by Creative Northland Trust.
 3. Notes the communication made to other outside organisations where formal appointments have historically been made.

Carried

6.3 Elected Member Remuneration Decision for the 2022-25 Term

Moved By Cr Nicholas Connop

Seconded By Cr Ken Couper

That Council:

1. Adopt the following recommendation to submit to the Remuneration Authority for remuneration of positions of additional responsibility, and allocation of the total remuneration pool for 2022-23:
 - Deputy Mayor (1 position) - 60% or a ratio of 1.6;
 - Committee Chair (5 Positions) - 30% or a ratio of 1.3;
 - Deputy Chair (3 positions) - 20% or a ratio of 1.2;
 - Chair of Civic Honour Committee (1 position) - 5% or ratio of 1.05.
2. Note the Remuneration Authority requires a recommendation by 27 January 2023 to meet the deadline for an amended Determination.
3. Note that changes to the governance structure during this term of Council, that change the number of positions of responsibility held by elected members, will require reallocation of the remuneration pool.
4. Delegates to the Chief Executive the responsibility of ensuring the documentation is completed for the Remuneration Authority.

Carried

6.4 Temporary Road Closure - L.A.B concert

Moved By Cr Phil Halse

Seconded By Cr Marie Olsen

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the L.A.B concert on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 4 February 2023

Okara Drive, from the roundabout at Okara Drive & Porowini Ave to the roundabout at Okara Drive & Port Road.

Period of Closure: 6:00am to 11:59pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel, or amend any or all of the temporary road closures if applicable.

Carried

6.5 Temporary Road Closure - Northland Car Club Hillclimb Series

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Northland Car Club Hillclimb series on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Sunday 12 March 2023

Mangapai Caves Road, from Roundtree Road to McDonnell Road

Sunday 30 April 2023

Coxhead Road, from end of Coxhead Road to State Highway 15

Sunday 18 June 2023

Rosythe Road, from 2.5km from State Highway 1 to 400m from State Highway 1

Sunday 9 July 2023

Springfield Road, from Ormiston Road to 7.5kms from State Highway 1

Period of Closure: 9am – 5.30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

6.6 Natural and Built Environment Bill / Spatial Planning Bills

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That the Council

1. Note that the date for the closing of submissions on the Natural and Built Environment and Spatial Planning bills is the 5th February 2023, meaning any submission of Council must be lodged before the first Council meeting of 2023.
2. Delegate to the Mayor and Councillor Ken Couper the authority to approve any submissions on the above two Bills so that the submissions can be lodged on time.

Carried

6.7 Northland CDEM Group – Multi-Agency Coordination Centre Funding

Moved By Cr Carol Peters

Seconded By Cr Nicholas Connop

That Council, contingent on funds being provided by all Civil Defence Emergency Management Group members, approves additional operating expenditure of \$250,000 to contribute towards funding the Multi-Agency Coordination Centre for the benefit of the region, in the next Annual Plan 2023-2024.

Carried

6.8 Mangawhai Memorandum of Understanding - water supply network

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That the Council;

1. Authorises staff to work with Kaipara District Council and Mangawhai Developments Limited to determine if a water supply from Bream Bay to Mangawhai would be a viable project.
2. Authorises the Chief Executive to sign a Memorandum of Understanding outlining the investigation works to be considered for development of the proposal.

On the motion being put Cr Halse called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper		X	
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen			X
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Paul Yovich		X	
Results	4	8	1
The motion was Lost (4 to 8)			

6.9 Appointment of a Registrar - pecuniary interests

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council:

1. Appoint the Manager of Democracy and Assurance to the role of Registrar under section 54G of the Local Government Act 2002 to compile and maintain the register of members pecuniary interests; and provide advice and guidance to members in connection with their obligations under Part 4, Subpart 3 of that Act.
2. Note the report on mandatory declaration of pecuniary interests and the maintenance of a register of pecuniary interests under the Local Government Act 2002.

Carried

6.10 Civic Centre Contract Value Extension - Contract 20010 Civic Centre

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council:

1. Rescinds the following resolution adopted 24 November 2022:

*'2 Approves a further extension of the contract CON 20010 Civic Centre to **\$52,400,000** (excluding GST) to complete the construction of the Civic Centre and associated landscaping and storm water works.'*

And resolves:

2. That Council approves a further extension of the contract CON 20010 Civic Centre to **\$54,200,000** (excluding GST) to complete the construction of the Civic Centre and associated landscaping and stormwater works.

Carried

6.11 Request for Road Legalisation Cullen Road

Moved By Cr Phil Halse

Seconded By Cr Gavin Benney

That the Council

1. Approves the request for road boundary adjustments for a section of unformed Cullen Road, Waipu as detailed in the agenda item.
2. Approves the transaction for a direct land exchange with no compensation by either party for parcels 1 to 9.
3. Approves a 50/50 share of all survey and legalisation costs for parcels 1 to 9.
4. Approves the transaction for a land sale for parcels 10 and 11 for \$2,000-00 plus Gst if any.
5. Confirms the applicant will be required to pay for all survey and legal costs for the transaction for parcels 10 and 11.
6. Authorises the Chief Executive to enter into the necessary agreements on behalf of Council to complete the legalisation.

Carried

Declaration of Interest:

Cr Couper declared an interest in regards to Item 6.11 due to a familial connection.

6.12 Freedom Camping Enforcement Programme 2022/23 - Variation to Regulatory Services Contract

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That the Council:

1. Notes that Council has successfully obtained \$200k of freedom camping grant funding from the Ministry of Business, Innovation and Employment (MBIE), \$139k of which relates to the provision of education, monitoring and enforcement.
2. Notes that on 18 August 2022 the Strategy, Planning and Development Committee approved up to \$99k of unbudgeted freedom camping monitoring and enforcement through its Regulatory Services contract for the 2022/23 season, should funding not be made available by MBIE.
3. Approves an alternative MBIE funded enhanced Freedom Camping Education, Monitoring and Enforcement Programme through the Regulatory Services contract to the value of up to \$139k, extending the contract value from \$11,933,402.45 to \$12,072,402.45, plus escalation provided for under the approved contract.
4. Delegates the Chief Executive to execute on behalf of Council the required variation to contract.

Carried

6.13 Standing Orders for the Whangarei District Council

The motion was decided in parts.

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That Council:

- a. Note the Whangarei District Council Standing Orders in ***Attachment One***.
- b. Agree to **retain** clause 19.3 in the Standing Orders, for providing for a Chair's Casting Vote.
- c. Agree to **retain** Option A (clause 22.2 of the Standing Orders) as the default option for dealing with motions and amendments, with the option to agree at the start of the meeting to use either Option B or C, as set out in clauses 22.3 and 22.4 of the Standing Orders.

- d. Agree to **retain** clause 13.7 in the Standing Orders to allow members to attend meetings by audio visual link as set out in clauses 13.7 to 13.16 of the Standing Orders.
- e. Agree to **retain** clause 21.2(a) in the Standing Orders that allows movers of motions when speaking to the motion, not more than **5 minutes**.

Carried

- f. Adopt the Standing Orders as included in **Attachment One**, incorporating recommendations b), c), d) and e), as resolved.

Carried

- g. Delegate to the Chief Executive the ability to make minor typographical changes to the Standing Orders.

Carried

Extra ordinary business

Subsequent to the agenda being circulated Item 6.14 – Approach to 2023-2024 Annual Plan was distributed separately but not within the timeframe specified in LGOIMA.

The report was not included in the agenda for the reason that work on the budgeting and engagement options had not concluded at the time of the agenda closure.

Council are asked to consider this matter at today's meeting to delay to the next scheduled meeting of council could compromise the adoption of the Annual Plan.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That council consider Item 6.14 – Approach to 2023-24 Annual Plan at this meeting.

Carried

6.14 Approach to 2023-24 Annual Plan

Moved By Cr Gavin Benney

Seconded By Cr Jayne Golightly

That the Council:

1. Instructs staff to prepare detailed operating budgets and resulting engagement options for the 2023-24 Annual Plan based on:

Approving Option 3, requiring formal consultation along with Fees and Charges and road seal extension rates, with increases (excluding growth) as follows:

- 5% to general rates
 - 5% to wastewater targeted rates
 - 5% to water targeted rates, including metered water
 - 5% to flood targeted rates.
2. Notes that growth will be allowed for in expected revenue from rates in accordance with the 2021-31 Long Term Plan. This budget assumption is to account for growth in new rateable properties and allows for an additional 1% for general rates, and 0.8% for wastewater and water.
 3. Notes that a variation of +/- 1% (excluding growth) to the planned 2021-31 Long Term Plan rates increase of LGCI +2% (7.9%) would trigger a formal consultation.
 4. Notes that draft budgets will be presented to Council early March to formalise the approach for the 2023-24 Annual Plan.

Procedural motion

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That this item does lie on the table until the Extra ordinary Council meeting 22 December 2022.

Carried

A break was taken from 10.53am to 10.58 am following Item 6.14.

7. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Deborah Harding

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 24 November 2022	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Project funding request		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the minutes.	
1.2	To enable the Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)

Carried

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting at 11.29am with a karakia/prayer.

Confirmed this 23rd day of February 2023

His Worship the Mayor Vince Cocurullo (Chairperson)